

On the Matters of the Tribunals of the Holy Inquisition, Volume I — Book I, Chapter VII, Rule LXV: Whether the Pope alone is another living rule of faith, and how, in some cases (nn. 259–278)

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Translated 1:1 from the diplomatic transcription. Column breaks [col. b] and marginal paragraph numbers (bold) are kept. Sic-notes follow the text.

BLOCK A — Regula LXV, nn. 259–278 (printed 135–137)

[col. b]

Whether the Pope alone is another living rule of faith? And in what manner in certain cases?

RULE LXV.

259 BESIDES the one already set forth, there is necessarily assigned another rule of faith, a living, or animate, rule of faith, namely the Supreme Pontiff, the true Vicar of Christ, by himself alone without any council, whether particular or general, inasmuch as he defines and ordains from the Chair; and he is of such great certainty and infallibility that he can in no way err, not only in expressing whatsoever things are to be believed by divine faith, but also in making known and handing down precepts, or moral matters, for the universal Catholic Church[1]

260 OF this rule of faith Castro Palao treats more copiously than the rest, tract. 4. de fide disp. 1. pun. 5. p. 6., in rather long sections (whereas in other matters he is wont to proceed more compendiously), and he approves our Rule altogether, as to all its parts. The necessity of this rule is easily shown from this: that since general councils cannot be convened without great expense and enormous difficulty, and accordingly are rarely convened, and since on the other hand there arise not rarely but frequently various matters to be proposed, {p. 136} ordained, and decided for the whole Church, concerning the various heads which I shall presently adduce, it was simply needful that provision be made for the Church herself, as was in fact provided by Christ our Lord, with some living rule of faith, always present.

261 But that this rule of belief is the head of the Church herself, that is, the Roman Pontiff, is certain of faith, because to Peter and to his successors Christ our Lord granted the power, or jurisdiction, of

feeding the Church, John 21: *Feed my sheep*, chiefly by interpreting the scriptures and by proposing truths to be believed, and **262** under an obligation of believing them. And from this it follows that this power has necessarily joined to it infallibility and the assistance of the Holy Spirit, so that he cannot err; and this has a most firm foundation in the promises of Christ our Lord, namely in that one of Matt. 16: *upon this rock I will build my Church, and the gates of hell shall not prevail against it*; they would indeed prevail, and the building would fall, if the Pope could err while he speaks from the chair in defining and proposing for the whole Church. Likewise in that promise, Luke 22: *I have prayed for thee, Peter, that thy faith fail not*, which is understood not only of St. Peter himself, but also of his successors, as St. Leo the Pope, Sermons 1 and 2 on his own elevation, and Innoc. III. *in cap. Maiores de baptismo*, and many other Pontiffs in their decretal letters expound:

263 Furthermore, that the Pope has the said jurisdiction and power altogether independently of a General Council, and that by this he is constituted the rule of belief in the aforesaid manner, is clear from the preceding rule of faith, namely from divine tradition, and from the perpetual consent of the Church, and from the continual practice of the Supreme Pontiffs in defining matters of faith, in interpreting the scriptures, and in proposing precepts of morals to the Church herself. It would be superfluous now to set these things out by drawing up a series of many examples, and those of each Pontiff through the various centuries, and so to render this matter more evident; let it suffice to touch on one or another of our own time, and to weigh a little a few points about which there seems room for some doubt.

264 And indeed concerning the reading and the interpretation of the divine Scriptures there is no room for doubting, since to Peter, and to each of his successors, it is said, Luke 5: *Launch out into the deep*, as some expound it mystically, into the depth of sacred Scripture, to draw out its fitting sense and to assign the legitimate reading of it.

265 Hence Sixtus V ordered the whole of the Sacred Bible of the Vulgate edition to be revised, and, so revised, it was published by the authority of Clement VIII; and in accordance with that revision and edition, as coming from the said Pontiffs as from a rule of faith, the universal Church received it as certain of faith.

266 There is likewise no room for doubting concerning the said jurisdiction of the Pontiffs, and concerning their rule of faith with regard to the rite of the administration of the Sacraments, above all of matrimony, and with regard to the declaration of the incapacity of persons for contracting it[2] Hence the same Sixtus V, by constitution 59, beginning *Cum frequenter*, declared incapable any eunuchs lacking both testicles [col. b], and declared that they are in no way able to contract matrimony; likewise he declared that the marriages previously contracted by them had been, and are, null: which declaration is held as certain of faith by the universal Catholic Church; although before that there was no lack of Catholic Doctors, such as Medina, reported by Fr. Basilio Ponce, tract. de impedimentis matrimonij cap. 33. §. 1., who held that such marriages were valid, and could be contracted by the said eunuchs.

267 But what of the Canonization and Beatification of Saints: is the Pope a rule of faith there also, so that he cannot err? He is indeed, and concerning both he can in no way fall into error. So St. Thomas, Quodlibet 9, art. ult., rightly teaches; and although neither he, nor any other of the ancient Doctors who treated expressly of the canonizing of Saints, said anything of beatification, yet without doubt they meant to comprehend the latter under the former; since it is to be held with the same certainty that the Pontiff is free from error in the beatification of any Saint as he is in canonization, and that it must be judged equally rash and scandalous if anyone should assert that he can err in either of them, because it is without foundation, and against the right ordering of **268** morals, to assert this. And this holds above all if the Beatification be such as it more often is, with a concession that the sacrifice of the Mass be celebrated in honour of the one beatified; so Palao, cited above, hands down from the mind of others, §. 5.

269 He indeed well marks out the difference between beatification and canonization, declaring what each of them is, in this alone: that the former is a faculty and licence granted to some particular Province, or Church, or religious order, that it may venerate someone as a Saint, and as existing in heaven, with an expression of the cult with which he is to be venerated, namely by the sacrifice of the Mass, by prayers, by public processions, by vows, by his invocation, and by the carrying of his image; with some limitation of these, **270** or none. But canonization is a licence granted not to some particular Province, but to the universal Church, of venerating someone as a Saint, with that cult and veneration with which the Saints are wont to be venerated: the same Castro Palao, in almost so many words.

271 What further[3] of the approval of religious orders: can the Pontiff err concerning this? In a single word I reply, with the same Castro Palao §. 6, with Valencia disp. 1. q. 1. punct. 7. §. 4., and with others (whatever Bañez, 2. 2. q. 1. art. 10. dub. 8., may say to the contrary without firm foundation), that, simply speaking, in the approval of any religious order, at least as to the substantials constituting the state of religion, the Pope **272** is always immune from all error. The reason is that if he were to accept a religious order which, all the circumstances being weighed, he ought to reject, he would bind the Church to something which would turn out not to the building up of the Church herself but to her destruction, and against the honesty of morals, which it is not to be believed that the Holy Spirit would permit; therefore, that the Church be not destroyed, nor err, it must be judged that the Pope cannot err in the approval of a religious order, and consequently that with regard to such approval he is a certain and infallible rule of belief.

{p. 137} **273**[4] I said, as to the substantials, and the things constituting the state of religion; for as to accidentals, such as the multiplication of precepts, or an excessive rigour of penalties, just as with regard to other accidentals outside a religious order in the governance of the Church, it is not unfitting that some human defect be committed by him, as Suarez **274**[5] hands down ubi supra sect. 8. Hence we often see that what one Pontiff has ordained or disposed concerning such accidentals is revoked by another, or **275** at least limited. Yet note that a revocation or limitation of this kind not

rarely arises from this, that in one circumstance of time or of place that is judged not expedient, or unfitting, for the Church or for a religious order, which **276** in another was reckoned to be expedient. Which observation sometimes has place in substantials also; nor is it any wonder that some religious order should be dissolved by a later Pontiff on account of its relaxation, or for some other cause, which had been approved by another rightly and fittingly without any error.

277 To indicate more fully the infallibility of the rule of belief in the person[6] of the Supreme Pontiff, that weighty doubt is wont to be discussed here by some: whether it is of faith that this man, who for the time being governs the Church of God, is the true Pope? Concerning which there are two opposed opinions of the Doctors on the one side and the other: I have always been pleased by the resolution under a distinction, which thirty-five years ago I defended publicly in the church of the College of Barcelona, in the theological theses proposed by me, as is customary every year for the honour of the College, with the Rev. Fr. Vincenzo Sigala, then nuncio extraordinary of the Most Holy Clement VIII to the Catholic King Philip III, arguing against, for the fuller elucidation of the truth: namely, that it is of faith that this man is the true Supreme [col. b] Pontiff, when he has been received by the sufficient consent of the whole Church, and so approved that all are bound to obey him, above all in receiving definitions of faith and ordinances concerning the morals of the whole Church; but otherwise before that: which is clear, because in time of schisms it is almost always an altogether uncertain matter who is head of the Church, **278** and whom one must then obey. And thus far concerning the Supreme Pontiff according to this consideration only, that he is a rule of faith: according to the others, the treatment of him is very copious indeed; see Suarez, disp. 10. de fide.

Sic-notes

1. 1. 259, PDF 151 / printed 135, col. b: **Cathol** — the rule breaks off in mid-word at the foot of the column, with no hyphen, no point and no continuation. Read **Catholica**, and so translated “Catholic Church”.
2. 1. 266, PDF 152 / printed 136, col. a: **contrahendum Hinc idem Sixtus V.** — no point after **contrahendum**. Read **contrahendum. Hinc idem Sixtus V.**; the sentence break is supplied in the translation.
3. 1. 271, PDF 152 / printed 136, col. b: **prætera** — read **præterea**, “further”.
4. 1. 273, PDF 153 / printed 137, col. a: the marginal number is printed **173**. Read **273**.
5. 1. 274, PDF 153 / printed 137, col. a: the marginal number is printed **174**.. Read **274**.
6. 1. 277, PDF 153 / printed 137, col. a: **in per-|na Summi Pontificis** — read **in persona Summi Pontificis**, “in the person of the Supreme Pontiff”.
7. Running head, PDF 153 / printed 137: **CAP. VIII. REG. LXV.** — read **CAP. VII**. The chapter VIII in fact opens lower on the same page, after n. 281.

Closing note

The translation follows the Latin sentence by sentence, keeping Salelles's long periods intact rather than breaking them up, so that the marginal numbers and the page and column markers fall at the points they occupy in the print. Technical vocabulary is rendered consistently: *norma fidei viua, seu animata* as "a living, or animate, rule of faith", *regula* and *norma credendi* alike as "rule of belief", *ex Cathedra definit* as "defines from the Chair", *certum de fide* as "certain of faith", and *Religio* in the sense of an order as "religious order". Scripture is given in the Douay wording, and citation strings (volume, disputation, section, canon) are left in their Latin abbreviated form as printed.